

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Caroline Geitner v. Tia Sonesouphab et al

24CV002118

MOTION FOR RELIEF FROM WAIVER OF OBJECTIONS TO DEFENDANT’S REQUEST FOR PRODUCTION OF DOCUMENTS

TENTATIVE RULING: The motion is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Caroline Geitner moves, pursuant to Code of Civil Procedure section 2031.300, subdivision (a), for relief from waiver of her objections to Requests for Production of Documents (Set Two) propounded by Defendant St. Joseph Health Northern California, LLC. (St. Joseph). Ms. Geitner so-moves on grounds that “the one-day delay in serving verified responses to Defendant’s requests was the result of inadvertent mistake and excusable neglect. Furthermore, Plaintiff has served substantially compliant responses to Defendant’s requests, and Defendant will not be prejudiced by this Court granting relief . . .” (Notice of Motion at 2:8-13.)

The Court finds, from the evidence presented, that Ms. Geitner has served a response that is in substantial compliance with the relevant provisions of the Civil Discovery Act, and that her failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2031.300, subd. (a).)

The Motion is, therefore, GRANTED.

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Jessica Fernandez v. SRGA Resort LP et al

26CV001032

[1] DEFENDANT AUBERGE RESORTS LLC’S MOTION TO COMPEL ARBITRATION

TENTATIVE RULING: The motion is DENIED.

Defendant Auberge Resorts LLC (Auberge) moves for an order compelling Plaintiff Jessica Fernandez to arbitrate those claims asserted against Auberge through the operative First Amended Complaint (FAC) in this action.